AGREEMENT TEMPLATE

# LLC Operating Agreement

Operating agreement of [COMPANY LEGAL NAME], LLC

Software da Database User 13

> Template for review. This document is a starting point, not legal advice. Have it reviewed by a licensed attorney in your jurisdiction before you sign or rely on it.

This Operating Agreement (this "**Agreement**") of [COMPANY LEGAL NAME], LLC (the "**Company**") is made on [EFFECTIVE DATE] (the "**Effective Date**") by the persons who sign it in Article 14 as members of the Company (each a "**Member**").

The Members are forming, or have formed, the Company as a limited liability company to own and operate the AI data center services business that has been working under the name "Software da Database User 13", and agree as follows.

**Completing this template**

- Complete or strike out every highlighted [BRACKETED BLANK] and every blank line before anyone signs; no blank has a default value. Check exactly one management box in clause 6.1; both are blank on purpose.
- "Software da Database User 13" is a working name. Choose the legal name, check its availability with the state, and write it wherever [COMPANY LEGAL NAME] appears. Write the EIN in clause 1.1 only once the tax authority has issued it.
- Clause 2.1 describes the business by the seven service categories in its rate card on October 18, 2026, which lists 28 services. Update it if the business changes.
- Limited liability company law, tax rules and filing requirements differ by state, so some clauses may need changes or may not be enforceable where the Company is organized. Have a licensed attorney review the Agreement, and a tax adviser Article 5, before signing. The formation checklist on the last page is guidance, not part of the Agreement.

## Article 1. Formation

**1.1 Formation details.** Complete when filing; the filed Formation Document controls if a line differs.

| | |
|---|---|
| Legal name of the Company | **[COMPANY LEGAL NAME], LLC** |
| Working name of the business | **"Software da Database User 13"** – working name only (clause 1.3) |
| State of organization | _____ |
| Date formation document filed | _____ |
| State filing number | _____ |
| Registered agent | _____ |
| Registered office address | _____ |
| Principal office address | _____ |
| Federal Employer Identification Number (EIN) | _____ – obtained from the tax authority after formation |

**1.2** **Formation.** The Company is formed as a limited liability company by filing a formation document with the state named in clause 1.1 (the "**State of Organization**"). Depending on the state, that document may be called articles of organization, a certificate of formation or something similar (the "**Formation Document**"). Each Member shall sign any filing needed to form the Company and keep it in existence.

**1.3** **Name.** The Company's name is [COMPANY LEGAL NAME], LLC. "Software da Database User 13" is the business's working name, not its legal name. Before the Formation Document is filed, the Members shall check with the State of Organization that the legal name is available, and whether trading under any other name, including the working name, needs a separate registration where the Company does business. The name may be changed only under clause 6.4.

**1.4** **Registered agent and offices.** The registered agent and registered office are those in clause 1.1. The Company may change them, and open other offices, by a decision under Article 6 and any filing the State of Organization requires.

**1.5** **Term.** The Company begins on the date its Formation Document is filed, or on any later effective date stated in it, and continues until it is dissolved and wound up under Article 11.

**1.6** **Tax identification number.** The Company shall apply for its EIN after the Formation Document is filed and write it in clause 1.1 once the tax authority has issued it. No other number, such as a Member's own taxpayer number, may be used as the Company's.

**1.7** **Limited liability.** No Member or Manager is personally liable for the debts, obligations or liabilities of the Company only because of being a Member or Manager, except as the applicable law, or that person's own written guarantee, provides. This protection can depend on how the Company is formed and run, including keeping Company and personal money apart under clause 8.4; the Members shall ask their attorney what it requires in the State of Organization.

**1.8** **Formation Document and law.** If this Agreement conflicts with the Formation Document, or with a rule of law the Members cannot change by agreement, that document or rule prevails.

**1.9** **Defined terms.** In this Agreement, the "**Company**" is the limited liability company named in clause 1.1, and:

**"Capital Contribution"** means cash, property or services a Member contributes under Article 4.

**"Fair Value"** means the value of an interest in the Company set under clause 9.5.

**"Majority in Interest"** means Members who together hold more than half of all Percentage Interests.

**"Manager"** means a person appointed under clause 6.3 while the Company is manager-managed.

**"Percentage Interest"** means a Member's share of the Company as stated in clause 3.1, as updated.

**"Transfer"** means any sale, gift, assignment, pledge or other disposal of all or part of an interest in the Company, whether voluntary or by operation of law.

## Article 2. Purpose

**2.1** **Purpose.** The purpose of the Company is to operate an AI data center services business, including providing compute, inference, storage, network, colocation, support and professional services to clients and owning or operating the hardware, software and facilities used to deliver them, and to engage in any other lawful activity for which a limited liability company may be formed in the State of Organization.

**2.2** **Powers.** The Company may do anything lawful that is necessary or convenient to carry out its purpose, including buying, leasing and selling equipment; entering into client, supplier and lease agreements; employing staff and engaging contractors; borrowing money; and owning intellectual property, in each case subject to clause 6.4.

**2.3** **Licenses and permits.** The Company shall obtain and keep the licenses, permits and registrations its activities require. Which ones apply depends on where the Company operates and what it does there; for a data center they may include building, electrical, fire safety and environmental approvals as well as business and tax registrations. The Members shall confirm them with their attorney or the relevant authorities.

## Article 3. Members

**3.1** **Members.** The Members, their addresses for notices, their initial Capital Contributions and their Percentage Interests are:

| Member name | Address for notices | Capital contribution | Percentage interest |
|---|---|---|---|
| | | | |
| | | | |
| | | | |
| | | | |
| **Total** | | | **100%** |

Non-cash contributions are described under clause 4.2. If there are more Members than rows, attach a continuation table signed by all Members.

**3.2** **Keeping the table current.** The Percentage Interests must add up to 100%. The Company shall update the table in clause 3.1 whenever a Member is admitted or leaves, an interest is Transferred, or contributions change the Percentage Interests, and all Members shall sign or initial each update.

**3.3** **Authority.** A Member has no authority to act for or bind the Company except as Article 6 provides or the Members authorize in writing.

**3.4** **Other activities.** A Member may carry on other business activities, except [ANY ACTIVITY A MEMBER MAY NOT CARRY ON, SUCH AS COMPETING AI DATA CENTER SERVICES, OR NONE]. A Member shall not use Company property, client relationships or confidential information for any other business.

**3.5** **Confidentiality.** Each Member shall keep confidential, during and after membership, the Company's non-public information, including client data, prices, source code and security information, and use it only for the Company's business, except for a disclosure the law requires or the Members approve in writing.

## Article 4. Capital contributions

**4.1** **Initial contributions.** Each Member shall make the initial Capital Contribution stated in clause 3.1 by [DATE].

**4.2** **Contributions of property.** A Member who contributes property other than cash, such as equipment, software, domain names or other intellectual property, shall describe it in a written schedule signed by all Members, with the value the Members agree for it. Such property may include the data center software developed under the working name, which runs seven databases (Contacts, Documents, Datasets, Model registry, Embeddings, Jobs and Audit). On contribution, the Member transfers all of their rights in the property to the Company and shall sign any document needed to confirm that. Property not listed in a schedule stays the Member's own, and the Company uses it only under a written license.

**4.3** **Further contributions.** No Member is required to make a further Capital Contribution. The Company may ask for further contributions only with the approval of [ALL MEMBERS / A MAJORITY IN INTEREST], and if a Member does not contribute, [CONSEQUENCE, SUCH AS ADJUSTING PERCENTAGE INTERESTS, OR NONE].

**4.4** **Member loans.** With the approval required by clause 6.4, a Member may lend money to the Company. A loan is not a Capital Contribution, does not change Percentage Interests and shall be documented in writing with its interest rate and repayment terms.

**4.5** **Capital accounts.** The Company shall keep a capital account for each Member, credited with their Capital Contributions and share of profits and debited with their distributions and share of losses, as the Company's accountant advises.

**4.6** **No interest or return.** No Member earns interest on a Capital Contribution, or may withdraw or demand the return of one, except as this Agreement provides.

## Article 5. Allocations and distributions

**5.1** **Allocations.** Profits and losses for each fiscal year are allocated among the Members in proportion to their Percentage Interests, unless the Members agree otherwise in writing on the advice of the Company's tax adviser.

**5.2** **Distributions.** The Company may distribute cash it does not need for its operations, debts and reasonable reserves, at times and in amounts decided by [THE MEMBERS BY MAJORITY IN INTEREST / THE MANAGER], to the Members in proportion to their Percentage Interests when declared.

**5.3** **Limits on distributions.** The Company shall not make a distribution if, after it, the Company could not pay its debts as they fall due, or if it would breach a loan agreement or the law. A Member who receives a distribution made in breach of this clause shall repay it to the extent the law or the Members' agreement requires.

**5.4** **Tax distributions.** [INCLUDE OR DELETE] So far as cash allows, the Company shall distribute to each Member, within [PERIOD] after each fiscal year, enough to pay the income tax on that Member's share of Company profits at an assumed rate of [RATE], as an advance against the Member's other distributions.

**5.5** **Tax classification.** The Members intend the Company to be classified for income tax purposes as [TAX CLASSIFICATION CHOSEN WITH A TAX ADVISER]. The choices and their effects depend on the number of Members and on national and state tax rules, so the Members shall decide with a tax adviser and make any election in time.

**5.6** **Tax representative.** [NAME OR ROLE] shall represent the Company in dealings with tax authorities where the law requires or allows the Company to name a representative, shall keep the Members informed, and shall not settle a tax matter without the approval required by clause 6.4.

## Article 6. Management

**6.1** **Management structure.** Check one box only, and each Member initials the choice. If the Formation Document states how the Company is managed, the box checked must match it.

☐ **Member-managed.** The Members manage the Company under clause 6.2.

☐ **Manager-managed.** One or more Managers manage the Company under clause 6.3.

Initials of each Member _____ _____ _____ _____

**6.2** **Member-managed.** If the Company is member-managed, the Members decide its business by Majority in Interest, except for the decisions in clause 6.4. Each Member may make day-to-day decisions in the ordinary course of business within [LIMITS, SUCH AS A SPENDING LIMIT PER TRANSACTION].

**6.3** **Manager-managed.** If the Company is manager-managed, the Managers named below manage its business, except for the decisions in clause 6.4. A Manager need not be a Member. A Majority in Interest appoints, removes and replaces Managers, who act by majority.

| Manager name | Address for notices | Date appointed |
|---|---|---|
| | | |
| | | |

**6.4** **Major decisions.** Whichever structure is checked, the following require the written consent of [ALL MEMBERS / A MAJORITY IN INTEREST]:

(a) amending this Agreement or the Formation Document;

(b) admitting a new Member or issuing any new interest in the Company;

(c) selling, leasing or otherwise disposing of all or substantially all of the Company's assets;

(d) merging or converting the Company, or dissolving it;

(e) borrowing money, granting security over Company assets, or guaranteeing another person's debts, above [AMOUNT];

(f) entering a client, supplier, lease or equipment contract with total commitments above [AMOUNT] or a term longer than [PERIOD];

(g) any transaction between the Company and a Member, a Manager or a person related to either, including paying them for services;

(h) changing the Company's name or the nature of its business;

(i) starting, settling or abandoning a legal proceeding or tax matter worth more than [AMOUNT]; and

(j) filing for bankruptcy or a similar proceeding.

**6.5** **Officers.** The Members or, if the Company is manager-managed, the Manager may appoint officers with the titles, duties and authority stated in writing, and may remove them at any time.

**6.6** **Duties.** Each Member who takes part in management, and each Manager, shall act in good faith and in what they reasonably believe is the Company's best interest, shall disclose any personal interest in a matter before the Company decides it, and shall not take a business opportunity that belongs to the Company. How far an agreement can change these duties differs between states; the Members shall settle the wording with their attorney.

**6.7** **Pay and expenses.** A Member or Manager is paid for services to the Company only as approved in writing under clause 6.4. The Company shall reimburse reasonable expenses incurred for its business when they are supported by receipts.

## Article 7. Voting and meetings

**7.1** **Votes.** Each Member votes in proportion to their Percentage Interest. Unless this Agreement requires otherwise, the Members decide by Majority in Interest.

**7.2** **Meetings.** Any Member or Manager may call a meeting of the Members by written notice to every Member at least [NUMBER] days ahead, stating when and where or how to join and the business to be decided. The Members shall meet at least [HOW OFTEN, SUCH AS ONCE A YEAR].

**7.3** **Quorum and attendance.** Members holding a Majority in Interest form a quorum. A Member may attend and vote in person, by telephone or video if all participants can hear one another, or by a proxy who is another Member appointed by written notice to the Company before the meeting.

**7.4** **Written consent.** The Members may act without a meeting by written consent, including by email or electronic signature, signed by Members holding at least the votes the decision would need at a meeting at which all Members voted. The Company shall send a copy of each consent to every Member within [NUMBER] days.

**7.5** **Minutes.** The Company shall keep minutes of every meeting and a copy of every written consent with its records.

**7.6** **Deadlock.** If the Members are deadlocked on a decision for [PERIOD], they shall refer it to [MEDIATION, OR A NAMED ADVISER] before any Member starts proceedings or seeks to dissolve the Company.

## Article 8. Records and accounts

**8.1** **Company records.** The Company shall keep at its principal office, or electronically where every Member can obtain a copy:

(a) this Agreement, every amendment and every updated Members table;

(b) the Formation Document and every later filing with the State of Organization;

(c) a current list of Members and Managers, and a record of each Capital Contribution with its agreed value and date;

(d) minutes of meetings and written consents;

(e) the Company's tax returns and financial statements; and

(f) the Company's contracts, licenses and permits.

**8.2** **Electronic records.** Records may be kept electronically, including on the data center platform the Company operates, provided they are backed up and can be exported and printed on request.

**8.3** **Fiscal year and books.** The Company's fiscal year ends on [FISCAL YEAR END]. The Company shall keep complete and accurate books of account on the [CASH OR ACCRUAL] method, or another method its accountant advises.

**8.4** **Bank accounts.** All Company money shall be held in accounts in the Company's name, and no Company money shall be mixed with a Member's own. A payment or withdrawal above [AMOUNT] requires the approval of [WHO MUST APPROVE].

**8.5** **Reports to Members.** Within [NUMBER] days after the end of each fiscal year, the Company shall give each Member its annual financial statements and the tax information that Member needs to file their own returns.

**8.6** **Inspection.** Each Member may inspect and copy the Company's records on [NUMBER] business days' written notice, during normal business hours and at that Member's cost, for any purpose reasonably related to their interest in the Company.

**8.7** **Retention.** The Company shall keep its records for at least [PERIOD], or longer where the law or a contract requires.

## Article 9. Transfers of interest

**9.1** **Consent required.** A Member may not Transfer all or any part of their interest without the prior written consent of [ALL OTHER MEMBERS / A MAJORITY IN INTEREST OF THE OTHER MEMBERS], and any sale is also subject to clause 9.2. A Transfer made in breach of this Article is void to the extent the law allows.

**9.2** **Right of first refusal.** A Member who wishes to sell their interest shall first notify the Company and the other Members in writing of the proposed buyer, price and terms. The Company, and then the other Members in proportion to their Percentage Interests, may buy on the same terms by notice within [NUMBER] days. If they do not, the Member may sell to that buyer within [NUMBER] days on terms no better for the buyer, who becomes a Member only under clause 10.1.

**9.3** **Rights of a transferee.** A person who receives an interest by Transfer but is not admitted as a Member receives only the share of profits, losses and distributions attached to it, and has no right to vote, to take part in management, or to inspect records beyond what the law gives.

**9.4** **Death, incapacity or bankruptcy.** If a Member dies, becomes legally incapacitated or becomes bankrupt, the Company, and then the other Members, may buy that Member's interest at Fair Value by notice given within [NUMBER] days after they learn of the event. Until the interest is bought, the Member's successor holds only the rights in clause 9.3.

**9.5** **Fair Value.** Fair Value is [VALUATION METHOD, SUCH AS A VALUE THE MEMBERS AGREE EACH YEAR OR ONE SET BY AN INDEPENDENT APPRAISER]. The price is paid [PAYMENT TERMS].

## Article 10. Admission and withdrawal

**10.1** **New Members.** A person becomes a Member only with the consent required by clause 6.4, after making any agreed Capital Contribution and signing a written agreement to be bound by this Agreement. The table in clause 3.1 is then updated under clause 3.2.

**10.2** **Withdrawal.** A Member may withdraw by giving at least [NOTICE PERIOD] written notice to the Company and the other Members, but not before [DATE OR EVENT, OR DELETE THESE WORDS]. The Company, and then the other Members, may buy the withdrawing Member's interest at Fair Value within [NUMBER] days after the withdrawal takes effect.

**10.3** **Removal for cause.** [INCLUDE OR DELETE] A Member may be removed by a decision of all other Members if that Member commits fraud or dishonesty against the Company, or materially breaches this Agreement and does not remedy the breach within [NUMBER] days after written notice. The Company shall then buy the removed Member's interest at Fair Value, less any loss the breach caused the Company.

**10.4** **Effect of leaving.** A Member who withdraws or is removed stops voting and taking part in management when that takes effect, remains bound by clause 3.5, shall return all Company property and information, including client data and access credentials, and remains responsible for obligations they took on before leaving.

## Article 11. Dissolution and winding up

**11.1** **Events of dissolution.** The Company is dissolved only on the first of these to occur:

(a) a written decision of [ALL MEMBERS / A MAJORITY IN INTEREST];

(b) the sale of all or substantially all of the Company's assets, once the proceeds are collected, unless the Members decide to continue the Company;

(c) there being no remaining Members, unless the Company is continued in a way the law allows; or

(d) a court order, or another event that requires dissolution under the law of the State of Organization.

**11.2** **Continuation.** The death, incapacity, bankruptcy, withdrawal or removal of a Member does not dissolve the Company unless the remaining Members decide to dissolve it under clause 11.1.

**11.3** **Winding up.** On dissolution, [THE MEMBERS / THE MANAGER / A PERSON THE MEMBERS APPOINT] (the "**Liquidator**") shall wind up the Company's business, complete or transfer client contracts, sell or distribute its assets and settle its affairs, and has the authority needed to do so.

**11.4** **Client data.** Before the Company's systems are shut down or sold, the Liquidator shall return or delete client data as each client's contract requires, and shall keep a written record of what was returned, deleted or kept and why.

**11.5** **Order of payment.** The Liquidator shall apply the Company's assets, to the extent the law allows, first to pay the Company's creditors, including Members who are creditors; then to set aside reasonable reserves for contingent or unknown liabilities; and then to the Members in proportion to their [POSITIVE CAPITAL ACCOUNT BALANCES / PERCENTAGE INTERESTS].

**11.6** **Final filings.** When winding up is complete, the Liquidator shall file any notice of dissolution or cancellation the State of Organization requires, file final tax returns, close the Company's accounts, and arrange for its records to be kept for the period in clause 8.7.

## Article 12. Indemnification

**12.1** **Covered Persons.** In this Article, a "**Covered Person**" is a Member, Manager or officer, acting in that role.

**12.2** **Indemnity.** To the extent the law allows, the Company shall indemnify each Covered Person against losses, judgments, settlements and reasonable legal costs arising from acting for the Company in good faith and within the authority this Agreement gives.

**12.3** **Exclusions.** Clause 12.2 does not cover a loss arising from the Covered Person's fraud, willful misconduct or knowing breach of law, [GROSS NEGLIGENCE, OR DELETE], material breach of this Agreement, or a personal benefit to which that person was not entitled.

**12.4** **Advance of costs.** The Company may pay a Covered Person's legal costs as they are incurred if the person agrees in writing to repay them should it be decided that they were not entitled to indemnity.

**12.5** **Insurance.** The Company may buy insurance for itself and its Covered Persons, such as general liability, professional liability and cyber insurance, in amounts the Members decide.

**12.6** **Source of payment and survival.** Indemnity is payable only from the Company's assets and insurance; no Member must contribute to it personally. This Article survives a Covered Person leaving their role.

## Article 13. General

**13.1** **Governing law.** This Agreement is governed by the law of [STATE OF ORGANIZATION].

**13.2** **Disputes.** A dispute about this Agreement shall first be discussed in good faith for [PERIOD] and, if not resolved, decided by [ARBITRATION UNDER NAMED RULES / NAMED COURTS].

**13.3** **Entire agreement.** This Agreement, with the Members table and any schedules signed under it, is the entire agreement among the Members about the Company and replaces any earlier one.

**13.4** **Amendment.** An amendment must be in writing, signed by the Members whose consent clause 6.4 requires.

**13.5** **Notices.** Notices are given in writing to the addresses in clause 3.1 or to another address a Member gives by notice, including an email address given for that purpose.

**13.6** **Severability and waiver.** If a provision is held unenforceable, it applies to the extent it is enforceable and the rest of this Agreement continues. A delay in exercising a right does not waive it.

**13.7** **Binding effect.** This Agreement binds the Members and their permitted successors and transferees. It is for the benefit of the Members and the Company only, and no creditor or other third party may enforce it.

**13.8** **Counterparts.** This Agreement may be signed in counterparts, and electronically to the extent the law that applies recognizes electronic signatures. Together the counterparts form one agreement.

**13.9** **Independent advice.** Each Member confirms they have read this Agreement, had the chance to take independent legal and tax advice, and know that the Company's lawyer acts for the Company only.

## Article 14. Signatures

**14.1** **Members.** Each Member signs below, effective on the Effective Date; add pages as needed.

Member signature _____ Member signature _____

Name _____ Date _____ Name _____ Date _____

Member signature _____ Member signature _____

Name _____ Date _____ Name _____ Date _____

**14.2** **Managers.** If the Company is manager-managed, each Manager who is not a Member signs to accept appointment and Articles 6, 8 and 12. Otherwise leave blank.

Manager signature _____ Manager signature _____

Name _____ Date _____ Name _____ Date _____

## Formation checklist

General steps for forming the Company and putting this Agreement into effect. They are not legal advice and not a complete list. Requirements, fees, forms and the order of the steps differ by state, and sometimes by county or city, so confirm each step with the state's business filing office, the tax authority and the Members' attorney. This checklist is not part of the Agreement.

| | Step | What to do | Date and initials |
|---|---|---|---|
| ☐ | **Choose and check a name** | Choose the Company's legal name; "Software da Database User 13" is a working name only. Check with the state's business filing office that the name is available, and that it does not conflict with an existing business or trademark. Decide whether the business will also trade under another name, which may need its own registration. | |
| ☐ | **File formation documents with the state** | File the Formation Document with the State of Organization and pay the filing fee. Write the filing date and state filing number in clause 1.1. | |
| ☐ | **Appoint a registered agent** | Appoint a registered agent to receive legal papers for the Company in the State of Organization, and keep the appointment current. Write the agent's name and the registered office in clause 1.1. | |
| ☐ | **Obtain an EIN** | Apply for an EIN once the Company is formed. In the United States the IRS issues these free of charge online, so there is no need to pay anyone else to get one. Write the number in clause 1.1 only after it has been issued to the Company. | |
| ☐ | **Complete and sign this Agreement** | Fill in every blank, check one management box in clause 6.1, have the Agreement reviewed by an attorney and a tax adviser, and have every Member sign it. | |
| ☐ | **Open a business bank account** | Open an account in the Company's name and keep Company money apart from personal money (clause 8.4). The bank may ask for the filed Formation Document, the EIN and this Agreement. | |
| ☐ | **Record capital contributions** | Collect each Member's initial contribution, and sign a written schedule for any equipment, software or other property contributed (clause 4.2). | |
| ☐ | **Check licenses, permits and annual filings** | Check the state and local licenses, permits and registrations the business needs, and the annual reports, fees and tax filings that keep the Company in good standing. The business's cost-planning data holds 22 government fee lines. Their jurisdictions and amounts were invented for the sample data set, so they are not a list of what applies; replace them once the state and locality are known. | |
| ☐ | **Keep this Agreement with the company records** | Keep the signed Agreement, the Members table and every amendment with the records in clause 8.1, and give each Member a copy. | |